

Bishan Swaroop Kaushik v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 February 2019 · Writ-C No. 5286 of 2019 · Writ-C No. 5286 of 2019 · **Writ dismissed; consumer relegated to para 6.5, then CGRF and Ombudsman.**

HEADNOTE

A consumer aggrieved by an electricity bill may raise the grievance before the concerned authorities under para 6.5 of the U.P. Electricity Supply Code, 2005, and if it continues, before the Consumer Grievance Redressal Forum and then the Ombudsman. Availability of that statutory remedy is a reason not to examine disputed questions of fact as to bill correctness in writ. The petition challenging a demand of electricity charges was dismissed.

FACTUAL SUMMARY

Bishan Swaroop Kaushik filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and three others, including electricity respondents represented by their own counsel. He challenged a demand of electricity charges. After hearing both sides and perusing the record, the Division Bench treated the matter as a billing grievance and considered only whether to examine the demand in writ or leave it to the statutory pathway under the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-grievance-statutory-remedy

HOLDING

If a consumer has a grievance against a bill, the grievance is to be raised before the concerned authorities under para 6.5 of the U.P. Electricity Supply Code, 2005, and if it continues, before the Consumer Grievance Redressal Forum and further before the Ombudsman. Because that statutory remedy is available, the Court will not enter disputed questions of fact relating to correctness of the electricity bill in a writ petition. ¶ 3-4

PRINCIPLE TAGS

clause-6.5-statutory-remedy Writ against a demand of electricity charges dismissed because para 6.5, and thereafter CGRF and Ombudsman, supply a statutory billing-grievance remedy. ¶ 3-5

billing-dispute-question-of-fact-executive-engineer-clause-6.5 The Court refused to examine disputed questions of fact on bill correctness once the para 6.5 pathway was available. ¶ 4

billing-objection-to-executive-engineer-under-6.5 A consumer grievance against a bill is to be raised first before the concerned authorities under para 6.5. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE DISPUTED QUESTIONS OF FACT RELATING TO THE DEMAND.

Left to para 6.5 authorities, and if the grievance continues, to CGRF and Ombudsman. ¶ 4